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January 23, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

ORDER ON MOTION TO EXTEND DISCOVERY

On January 16, 2018, Complainant Port Elizabeth Terminal & Warehouse ("PETW") filed a motion to extend discovery from Respondent The Port Authority of New York and New Jersey ("Port Authority"). On January 19, 2018, the Port Authority filed its opposition.

PETW states that the parties had agreed to submit a joint request to extend discovery by ninety days from January 16, 2018, to April 16, 2018. PETW states that additional time is needed to complete written discovery and take depositions of numerous party and non-party witnesses and respective experts. Motion at 2. The Port Authority indicates that it has no objection to extending the discovery date but that the extension should only be for 16 days, to February 1, 2018, to allow time for scheduled depositions. Opposition at 1. The Port Authority filed a motion to dismiss subsequent to the parties' agreement on the motion to extend discovery, and believes a longer extension may now be moot.

Good cause has been stated for an extension of the discovery deadline. The depositions scheduled for January 26, 2018, to February 1, 2018, should continue as scheduled. Additional time will be permitted for the completion of written discovery, scheduling of additional depositions, and any other necessary discovery. However, the parties have not established the need for a ninety day extension. A forty-five day extension, to March 2, 2018, will be granted. The parties should conduct depositions and continue with their discovery process while the motion to dismiss is pending.

For the above-stated reasons, it is hereby **ORDERED** that Complainant's motion to extend discovery be **GRANTED in part and DENIED in part**. The discovery deadline is extended to March 2, 2018.



Erin M. Wirth
Administrative Law Judge